A Comparative Law Approach on the Conceptualisation of the Environmental Accountability Principle Towards International Environmental Justice

By Habbine Estelle KIM*

ABSTRACT

The interrelationship between the Earth's ecosystems and human activities is complex and multifaceted. From anthropogenic climate change and resource depletion to natural disasters, environmental degradation has become an undeniable reality. In response, numerous legal and regulatory frameworks have been revised and introduced at national and transnational levels, reflecting the gravity of environmental concerns. For example, the expansion of the definition and scope of certain legislative instruments—such as those governing unfair commercial practices, unfair competition, and consumer protection—has facilitated global oversight of activities that have environmental implications. Furthermore, initiatives concerning eco-design, waste management, extended producer responsibility, and the circular economy contribute to fostering a more sustainable ecological system.

However, the fragmented and sector-specific nature of legal instruments within international environmental law poses considerable challenges to their effective implementation, compliance, and enforcement, thereby jeopardising the uniform application and interpretation of environmental regulations. Integrity remains a fundamental principle in addressing negative externalities, particularly in preventing forum or law shopping to the detriment of society as a whole. This necessitates the consideration of extraterritoriality and the adequacy of safety and security standards across different jurisdictions. Within this framework, the pursuit of optimised environmental justice remains an enduring challenge.

At present, environmental accountability is recognised as a global principle, encapsulating both collective and individual responsibility for actions or decisions that impact the environment. However, within the contemporary global market economy, increased regulatory scrutiny and stringent sanctions risk undermining business competitiveness and consumer welfare.

* Habbine Estelle KIM is a dual-qualified lawyer (Paris and New York Bars) and Partner at the law firm Archè SELARL. She serves as a Legal Expert at Station F (HEC Incubator), Regional Governor of France for the International Association of Korean Lawyers (IAKL), and a member of the Consultative Committee of the European Law Institute (ELI). She acted as Pro Bono lawyer for professional athletes during the Paris 2024 Olympics and Paralympics. She holds an LL.B from University College London and a Master's in Law, Economics, and Management, with a major in European Union Law, from Paris 1 Panthéon-Sorbonne University. She is also an Annual Conference lecturer at Université Paris Cité and author of many publications. Contact: habbine.kim@archelegal.com

This paper advocates for the modernisation of the environmental accountability principle with a particular emphasis on prevention and self-regulation as mechanisms to compensate enforcement and compliance challenges. Furthermore, the principle ought to prioritise the inclusivity of all contributors to environmental harm—whether natural or legal persons—and encompass all sectors of activity. The proposed mechanisms aim to prevent the displacement of pressing environmental issues to other jurisdictions to evade liability.

Section I examines the fundamental components of the environmental accountability principle, considering its definition and evolving nature, to identify practical solutions that support the *effet utile* of existing legal instruments.

Section II outlines common law and civil law principles that may help mend the liability gap resulting from the fragmented legal and regulatory frameworks in international environmental law. These principles include peremptory norms, international public order, duty of care, assumption of responsibility, and proportionality.

This flexible approach allows each State to interpret the principle within its own legal framework while enabling case law to drive legislative evolution in line with societal progress. At the same time, operators can develop and implement pragmatic solutions that contribute to the overarching goal of collective welfare. The international convergence of case law may foster a harmonizing effect akin to formal rule-making, without the delays typically associated with institutional legislative processes.

This work is not limited to any particular jurisdiction but instead draws upon various legal systems, all of which share a common objective: the promotion of the public good, with an emphasis on access to justice, diversity, and inclusiveness.

Contents

INTRODUCTION **4**

I. ENVIRONMENTAL ACCOUNTABILITY **5**

A. STATUS QUO 6

(i) On the Definition of "accountability" 6

(ii) On the Definition of "environmental" 7

B. PROBLEMATICS 11

(i) On Enforcement and Sanctions Compliance 11

(i) On the Remedies 15

II. INTERNATIONAL ENVIRONMENTAL JUSTICE: THE MODERNISATION OF THE ENVIRONMENTAL ACCOUNTABILITY PRINCIPLE **16**

A. **Legal Realism: a Pathway Towards Self-regulation** 17

B. Legal Transplant: Towards Diversity and Inclusiveness 18

(i) On Private International Law & Environmental International Public Order 19

(ii) On Environmental Duty of Care & Assumption of Responsibility 20

(iii) On Proportionality 23

CONCLUSION **27**

INTRODUCTION

Tackling environmental problematics continue to gain prominence. From the Minamata Bay Mercury Poisoning in the late 1950s, India's Bhopal Cyanide Gas Leak in 1984, to the BP Deepwater Horizon Oil spill in 2010, there have been several significant environmental scandals in the world.[1] In 2021, environmental crime[2] was ranked as the fourth largest criminal activity in the world, following drug trafficking, human trafficking and counterfeiting, generating around 110 to 281 billion US dollars in criminal gains per annum.[3] Globally, 0.01% to 0.4% of deaths and 0.1% to 0.24% of economic damage were caused by natural disasters.[4] In parallel, the number of "climate refugees" in the context of global displacement have also increased, affecting on average one person per second as of 2008, namely those from vulnerable and marginalised populations.[5] The collapse of the natural ecosystem would inevitably affects the human welfare and conditions of life, calling for intergenerational justice and solidarity.[6]

---

[1] Global Initiative Against Transnational Organized Crime, Haysom, S., et al. "*An analytic review of past responses to environmental crime and programming recommendations*", September 2022, https://globalinitiative.net/wp-content/uploads/2022/09/GITOC-EU-An-analytic-review-of-past-responses-to-environmental-crime-and-programming-recommendations.pdf; Council on Foreign Relations, "*1912-2020 Ecological Disasters*", https://www.cfr.org/timeline/ecological-disasters

[2] Directive (EU) 2024/1203 (Although there is no universal definition, the European Commission defines environmental crime as "acts that breach environmental legislation and cause significant harm or risk to the environment and human health"); UK House of Parliament, Parliamentary Office of Science & Technology, J. Wentworth and D Rabaiotti, "Environmental Crime", Post Note Number 547, 31 January 2017,

[3] European Union Agency for Criminal Justice Cooperation, "*Report on Eurojust's Casework on Environmental Crime*", January 2021, Catalog QP-03-20-759-EN-N, https://www.eurojust.europa.eu/publication/report-eurojusts-casework-environmental-crime; IPI Global Observatory, Killean, R., "*The Benefits, Challenges, and Limitations of Criminalizing Ecocide*", 30.03.2022, https://theglobalobservatory.org/2022/03/the-benefits-challenges-and-limitations-of-criminalizing-ecocide/; United Nations Environment Programme "*The rise of environmental crime: A growing threat to natural resources peace, development and security*", 2016, https://wedocs.unep.org/20.500.11822/7662.; FATF "*Money Laundering from Environmental Crimes*", 2021, https://www.fatf-gafi.org/publications/methodsandtrends/documents/money-laundering-environmentalcrime.html; United States Courts, "*Environmental Crime Tops List by Organizations*", 22.12.2016, https://www.uscourts.gov/news/2016/12/22/environmental-crime-tops-list-organizations; United States Courts, "*U.S. District Courts - Judicial Business 2021*", https://www.uscourts.gov/statistics-reports/us-district-courts-judicial-business-2021; US Courts, "*Federal Judicial Caseload Statistics 2020*", https://www.uscourts.gov/statistics-reports/federal-judicial-caseload-statistics-2020; US Environmental Protection Agency, "*2017 Major Criminal Cases*", https://www.epa.gov/enforcement/2017-major-criminal-cases; United States Environmental Protection Agency, "*Enforcement and Compliance Annual Results for Fiscal Year 2022*", https://www.epa.gov/enforcement/enforcement-and-compliance-annual-results-fiscal-year-2022

[4] Ritchie, H., et al. "*Natural Disasters*", 2022, Our World in Data, https://ourworldindata.org/natural-disasters

[5] United Nations High Commissioner to Refugees, Weerasinghe S., "*Legal and protection Policy Research Series : In Harm's Way*", Division of International Protection (PPLA/2018/05, December 2018); Internal Displacement Monitoring Centre, Norwegian Refugee Council, "*Global Report on Internal Displacement*" (2018) https://www.internal-displacement.org/global-report/grid2018/downloads/2018-GRID.pdf; United Nations General Assembly, Human Rights Council resolution 47/24 (A/HRC/RES/47/24)

[6] Title IV (Solidarity), Article 37 (Environmental protection) of the EU Charter of Fundamental Rights; United Nations, Chapter I (II) Principle 4 of the Report of the United Nations Conference on the Human Environment A/CONF,48/14/Rev.1, Stockholm, June 1972; Council of Europe, European Treaty Series no.150, Article 1 of the Convention on Civil Liability for Damage Resulting from Activities Dangerous to the Environment, Lugano, 21.VI.1993; Directive 2004/35/EC; Article 1 of the Convention on Access to Information, Public Participation in Decision-making and Access to Justice in Environmental Matters 1998 ("*Aarhus Convention*");

There exist copious legal and regulatory dispositions, at both national and transnational levels, reflecting the aforementioned realities[7], with at least 4590 environmental policy instruments implemented in 146 countries in 2024.[8] Consumers, stakeholders and actors voluntarily seek to integrate environmental initiatives and value into their corporate strategies and projects, despite being challenged with some practical obstacles.[9]

The present paper seeks to discern the *status quo* of the environmental accountability taxonomy through comparative legal analysis (Section I), prior to propounding its pragmatic conceptualisation[10] (Section II).

I. ENVIRONMENTAL ACCOUNTABILITY

"Environmental accountability" is a paradoxical principle forged within a fragmented system of environmental compliance. Although its historical foundations lie in public law[11],

[7] Article 23 of the Paris Agreement, Report of the Conference of the Parties to the United Nations Framework Convention on Climate Change (21st Session, 2015). Vol. 4. HeinOnline, 2015.; The EU and the Member States have shared competence with regards to the areas of environment, consumer protection, energy and common safety concerns in public health matters. See TFEU (Articles 4, 6, 9, 36, 114, 168, 169, 191); United Nations Congress on Crime Prevention and Criminal Justice, May 2021, "*Kyoto Declaration on Advancing Crime Prevention, Criminal Justice and the Rule of Law: Towards the Achievement of the 2030 Agenda for Sustainable Development*"; Directives 2002/49/EC, 2018/1999/EU, 2008/98/EC, 2018/851/EU, 67/548/ECC, 2015/1127/EU, 2010/75/EU, 2011/92/EU, 2010/75/EU, 1999/31/EC, 2014/52/EU, (EU) 2018/850, 2009/147/EC, 2008/99/EC, 2012/19/EU, 2009/125/EC, 2009/125/EC, 2000/60/EC and 2008/56/EC; Regulations 2019/290/EU, 2019/1010/EU, 2017/699/EU, 880/92/EEC and 2021/1119/EU; COM 2019/640 final; US Executive Order (EO) 14008, EO 12898, EO 13045, EO 13211; Title 40 of the US Code of Federal Regulations (CFR); US State Senate Bill S8830 and Assembly Bill A2103D; Articles 6 and 35 of South Korea's Constitution; South Korea's Act on Liability for Environmental Damage and Relief Thereof (EDRT) No.12949, 31.12.2014 ; South Korea's Environmental Technology and Industry Support Act No.17183, 31.03.2020; UK Environment Act 2021; UK Climate Change Act 2008; Sections 324 et seq. of Chapter 29 of the German Criminal Code; Germany's Federal Climate Protection Act; French Decree no.2022-539; French Laws n°2009-967 ("*Grenelle 1*") and n°2010-788 ("*Grenelle 2*"), Conference of Louis XIV, French Ordinance of 13.08.1669 ("*Ordonnance de Colbert*"); Australia's Climate Change Bill 2022; Japan's Disaster Countermeasures Basic Act no°223 of 15.11.1961 revised in June 1997; New Zealand's National Disaster Resilience Strategy 2019; Norway's Natural Hazards Compensation Act no.59 of 2014; The Convention for the Protection of the Mediterranean Sea Against Pollution (*Barcelona Convention*) of 16.02.1976; the United Nations Conference on Environment and Development (UNCED) (*'Earth Summit'*), Rio de Janeiro, Brazil, June 1992; US National Environmental Policy Act 1969 ; Kleoniki, P.,. "*Concretising the role of extended producer responsibility in European Union waste law and policy through the lens of the circular economy*." ERA Forum, Volume 20, no.4, pp. 491-508, 2020.

[8] Organisation for Economic Co-operation and Development Policy Instruments for the Environment, OECD PINE Database, July 2024, https://oecd-main.shinyapps.io/pinedatabase/

[9] Dasanayaka, C.H., et al. "*Triggers for and barriers to the adoption of environmental management practices by small and medium-sized enterprises: A critical review*." Corporate Social Responsibility and Environmental Management, 29.01.2022, Volume 29, Issue 4, pp.749-764.; Arvidsson, S. et al. "*Corporate ESG reporting quantity, quality and performance: Where to now for environmental policy and practice?*", 2022, *Business Strategy and the Environment*, 24.11.2021, Volume 31 Issue 3, pp.1091-1110.; Campo, I. et al., "*Regulatory challenges and opportunities for collective renewable energy prosumers in the EU*", Energy Policy, Volume 138, 2020, 111212

[10] United States Environmental Protection Agency, "*Environmental Justice*", https://www.epa.gov/environmentaljustice ("*the fair treatment and meaningful involvement of all people regardless of race, color, national origin, or income, with respect to the development, implementation, and enforcement of environmental laws, regulations, and policies*")

[11] Grant, R. W., & Keohane, R. O., "Accountability and abuses of power in world politics", 2005, American Political Science Review, Volume 99(1), 29–43.

environmental awareness and realities have compelled its emergence in the private sector, namely with the advent of corporate environmental accountability.[12] The present section explores its definition, in order to appreciate its evolutive characteristics, and to finally suggest that 'change' remains and ought to remain its *status quo*.

A. STATUS QUO

At present, there is no universally established environmental accountability taxonomy that applies uniformly to all States worldwide. This subsection examines the legal definition of the compound expression "environmental accountability", with particular emphasis on its ongoing evolution in response to societal developments.

(i) On the Definition of "accountability"

In order to comprehend what the environmental accountability taxonomy entails, it is worth examining its root terms and equivalents across different jurisdictions.

Firstly, it is noted that the term "accountability" is primarily used in common law jurisdictions, whereas civil law jurisdictions more commonly refer to "responsibility" or "liability." The expression "to be held accountable" implies that the subject responsible for assuming, bearing and owning the consequences of an act or an omission (e.g. a mistake, an error, a misrepresentation, a fault, or a negligence). Accountability is associated with the notions of answerability, explanation, or justification that are imposable upon a subject, by virtue of a certain power factor that comes into play.[13] Accountability may be vertical, horizontal or diagonal.[14] Some refer to its 'dimensions' which include intersecting notions of transparency, liability, controllability, responsibility, and responsiveness.[15]

Secondly, the expression "to be held responsible" is associated with certain acts, whether intentional, innocent or negligent, or omissions, often associated with correlative rights, obligations or duties (whether positive or negative) that are ongoing.[16] It is also strongly

---

[12] Morgera, E., *'The Need for Corporate Environmental Accountability*", 01.05.2009, Corporate Accountability in International Environmental Law, online edn, Oxford Academic;

[13] Bovens, M. 2007. "*Analysing and assessing accountability: a conceptual framework*." European law journal no.13 (4):447-468

[14] Walsh, E., "*Political accountability: Vertical, horizontal, and diagonal constraints on governments", 2020,* Policy Brief, 22. (Vertical accountability means "*institutions and actions that make the government accountable to the people through elections or political parties*." Horizontal accountability means "*the checks and balances that are in place and used by the legislative and judicial branches of government to hold the executive branch accountable*." Diagonal accountability means that "*media and civil society have to hold the government accountable, through, for example, the spread of information, publicity, protests, and other forms of engagement*."); Stapenhurst, F, et al. "*Accountability in governance"*, 2005, Washington, DC: World Bank. http://tinyurl.com/jkapnsa.; Biela, J. "*Accountability: On the Measurement of an Elusive Concept*", 2014, In 5th Biennial Conference of the ECPR Standing Group on Regulatory Governance. Barcelona.; Schillemans, T. "*The Public Accountability Review: A Meta-Analysis of Public Accountability Research in Six Academic Disciplines*", 2013, Utrecht University School of Governance Working Paper.

[15] Koppell, JG. "*Pathologies of accountability: ICANN and the challenge of "multiple accountabilities disorder",* 2005, Public Administration Review no. 65 (1):94-108.

[16] Gardner, J., *"Hart and Feinberg on Responsibility"*, 01.01.2009, in Matthew H. Kramer and others (eds), *The*

related to the notion of legal capacity,[17] authority and power (whether express, apparent, implied, actual, *de facto,* shadow or *de jure*).[18]

Finally, the legal expression "to be held liable" relates to the consequences of certain acts or omissions (including, but not limited to, indemnities, damages and interests, costs, expenses, disbursements and the prejudice caused) and the apportionment of liability between the subjects (e.g. joint, several, vicarious, personal or limited liability). It is more directly related to the enforcement of sanctions, whether pecuniary or not.

The interchangeability of the terms 'accountability', 'responsibility' and 'liability' in the legal literature drafted in the English language remains arguable. However, the linguistic separation between these terms, as well as the underlying nuance, are not manifest, systematic nor existent in other languages. In France, for example, the global term "responsibility" ("*responsabilité*") is used to encompass the underlying principle of accountability. Moreover, the legal expression "joint and several liability" is closely associated with but not equal to the French legal notions of "*obligation conjointe*"[19], "*obligation solidaire*"[20] and "*obligation in solidum*"[21] which remain modalities of obligation. The fact that "accountability" may be a term lost in translation in certain jurisdictions, but not others, suggests that challenges may arise in the context of enforcement, beyond mere linguistic differences or divergent interpretation methods, potentially affecting their significance and scope.[22]

(ii) On the Definition of "environmental"

Generally, environmental rights refer either to rights to the environment or rights linked anthropocentric rights such as public health and the public or private use of natural resources, more than to the rights of the environment itself. [23] The gist of such rights goes back to the

---

Legacy of H.L.A. Hart: Legal, Political, and Moral Philosophy, online edn, Oxford Academic.

[17] For example, a contract signed by a person without legal capacity will be voided. A guardian may be held responsible for acts done on behalf of the person under guardianship.

[18] Environmental liability can be civil and criminal. In case of criminal breaches, liability can be attached to not only corporate entities but also individual directors or officers.; Canadian Environmental Protection Act 1999; C anadian Environmental Enforcement Statute Law Amendment Act, 2005, S.O. 2005, c. 12 - Bill 133 ; *Gordon A nderson v R.* [2022] EWCA Crim 1465, 09.11.2022 (On the individual director liability for environmental offen ces) ; *American Soc'y of Mech. Eng'rs v. Hydrolevel*, 456 U.S. 566 (1982) ; Section 43, Part 4 of the United King dom Companies Act 2006 ("*a person acting under its authority, express or implied*") ; *Re Hydrodam (Corby) Ltd* [1994] 2 BCLC 180, [1994] 2 BCL (Lord Millett J., "[*A de facto director is a person who is held out as a director by the company, and claims and purports to be a director, although never actually or validly appointed as such. A shadow director lurks in the shadows, sheltering behind others who, he claims, are the only directors of the company to the exclusion of himself.]")*

[19] Article 1309 of the (New) French Civil Code (*Code civil*)

[20] Article 1310 et seq. of the (New) French Civil Code (*Code civil*); French *Cour de cassation*, comm. 26.09.2018, decision n°16-28133

[21] French *Cour de cassation*, comm. 19.04.2005, decision n°02-16676 ("*each of the faults committed had contributed to the occurrence of the damage as a whole, so that the liability of their authors had to be held in solidum towards the victim of the damage*")

[22] Haji, I., *'Obligation and Responsibility: Four Alleged Differences'*, Obligation and Responsibility, 23.02.2023, online edn, Oxford Academic; HLA Hart, "*The Concept of Law"*, 2012, 3rd edn, OUP; Roscoe E. Hill, "*Legal Validity and Legal Obligation*", 1970, YLJ, Vol. 80

[23] Joseph L. Sax. "The Public Trust Doctrine in Natural Resource Law: Effective Judicial Intervention," *Michigan*

human right to adequate conditions of life.[24] The latter is associated with the preservation and protection of the environment, which consequently grants rights of access to a clean, healthy, and sustainable environment.[25]

In many jurisdictions, the environmental rights appear to be intricately linked to constitutional guarantees, including the right to life and the protection of human health. In France, for example, guaranteeing "the right to a healthy environment*"* ("*le droit à un environnement sain*"), requires the protection of the environment, considered as the common heritage of mankind[26]. The first textual recognition of environmental rights dates back to the United Nations conference on the Human Environment on June 16, 1972[27], commonly known as the Stockholm Declaration. Since then, these rights have been gradually recognised by European and international sources. The first European instrument to explicitly recognize environmental rights was the Aarhus Convention, adopted on June 25, 1998.

Gradually, the growing importance of environmental conscience led to the emergence of derived rights. For example, "*environmental impact*" in consumer law is viewed as constituting one of the essential characteristics of goods and services, to which consumers have right to truthful information. [28] Consumers also have rights to legitimate expectation as to the security and safety of goods with properties having a likelihood of harmful environmental impact. [29] These environment-related grounds contribute in making the case actionable to consumers.

Subsequently emerged the view that environmental protection is a "prerequisite for

Law Review (1969): 470-565

[24] Article 25 of the Universal Declaration of Human Rights; Article 11 of the United Nations' International Covenant on Economic, Social and Cultural Rights 1967; Robinson, N.A., "Environmental Law: is an obligation erga omnes emerging", 2018, Panel Discussion at the United Nations, 4.; Meguro, M. "Litigating climate change through international law: Obligations strategy and rights strategy", 2020, Leiden Journal of International Law, 33(4), 933-951. doi:10.1017/S0922156520000473; UN General Assembly Resolution 76/300, A/76/L.75; United Nations, UN News Global perspective Human stories, "UN General Assembly declares access to clean and healthy environment a universal human right", 28.07.2022, https://news.un.org/en/story/2022/07/1123482; United Nations Human Rights Council Resolution 48/13, 08.10.2021, A/HRC/48/L.23/Rev.1; Subhash Kumar v. State of Bihar, 1991AIR420, 1991SCR(1)5

[25] UN General Assembly Resolution 76/300, A/76/L.75; United Nations, UN News Global perspective Human stories, "*UN General Assembly declares access to clean and healthy environment a universal human right*", 28.07.2022, https://news.un.org/en/story/2022/07/1123482; United Nations Human Rights Council Resolution 48/13, 08.10.2021, A/HRC/48/L.23/Rev.1; *Subhash Kumar v. State of Bihar*, 1991AIR420, 1991SCR(1)5; Australia's Human Rights (Healthy Environment) Amendment Bill 2023

[26] Conseil constitutionnel, decision No. 2019-823 QPC, 31 January 2020

[27] Stockholm Declaration on the Human Environment, in Report of the United Nations Conference on the Human Environment, UN Doc.A/CONF.48/14, at 2 and Corr.1 (1972).

[28] See Article 121-2 of the French Consumer Code (Misleading commercial practice)

[29] European Commission, Brussels, 22.3.2023, COM(2023) 166 final, 2023/0085 (COD)

respect for fundamental rights"[30], applicable not only to state actors[31] but also private corporate entities[32] for the benefit of individuals and communities. Throughout time, over 100 States have recognised its constitutional value.[33] However, it has not gone so far as to be ossified as a *jus cogens*, defined as "a peremptory norm of general international law is a norm accepted and recognized by the international community of States as a whole as a norm from which no derogation is permitted and which can be modified only by a subsequent norm of general international law having the same character."[34] *Erga omnes* rights[35] and obligations[36] could have complementarily served to protect the fundamental values and common interests of the international community as a whole[37], but for their lack of conceptual clarity.

The International Court of Justice defined environment as a representation of "the living space, the quality of life and the very health of human beings, including generations unborn."[38] Environment has also been defined as "all, or any, of the following media, namely, the air, water and land; and the medium of air includes the air within buildings and the air within other natural or man-made structures above or below ground."[39]

---

[30] European Economic and Social Committee, "*Environmental protection as a prerequisite for respect for fundamental rights*", NAT/824 ; Morgera, Elisa, 'Human Rights Dimensions of Corporate Environmental Accountability', in Pierre-Marie Dupuy, Ernst-Ulrich Petersmann, and Francesco Francioni (eds), *Human Rights in International Investment Law and Arbitration*, International Economic Law Series (Oxford, 2009; online edn, Oxford Academic, 1 Feb. 2010); United Nations General Assembly, A/RES/70/1, 70th session, "Resolution adopted by the General Assembly on 25 September 2015", Resolution 70/1 (2015); United Nations General Assembly, Human Rights Council, A/HRC/RES/35/20, 35th session, 6-23 June 2017, "Resolution adopted by the Human Rights Council on 22 June 2017 : Resolution 35/20 (2017) . Human rights and climate change"; United Nations General Assembly, Human Rights Council, A/HRC/RES/34/20, 34th session, 27 February-24 March 2017, Resolution adopted by the Human Rights Council on 24 March 2017: Resolution 34/20 (2017). Human rights and the environment" ; Inter-American Court of Human Rights (IACtHR) OC-23/17

[31] PSB et al. v. Brazil, ADPF 708 / 2020 (on Climate Fund)(The Federal Supreme Court of Brazil held that environmental law treaties such as the Paris Agreement constitute a particular type of human rights treaty, which enjoy a supranational status. As such, any action or omission violating environmental protection constitutes direct violation of the Constitution and human rights.)

[32] The Hague District Court, *Milieudefensie et al. v Royal Dutch Shell plc*, NL:RBDHA:2021:5339 (26 May 2021)(It is for the first time that a court found that a private company had environmental duties under the Paris Agreement. Here, the Royal Dutch Shell plc was ordered to reduce its worldwide carbon dioxide emissions by fourty-five percent by 2030. According to the Hague District Court, this widely endorsed consensus applies globally, including to non-state actors.)

[33] United Nations, Chapter I (II) Principle 1 of the Report of the United Nations Conference on the Human Environment A/CONF,48/14/Rev.1, Stockholm, June 1972; Polk, A., "*The Unfulfilled Promise of Environmental Constitutionalism*", 2023, Hastings Law Journal, 74(1); Craig, R.K., 2019. "*Constitutional Environmental Law, or, the Constitutional Consequences of Insisting that Environment is Everybody's Business*". Environmental La w, 49(3), pp.703-736.; Albany Law School, Government Law Center, Fein S., et al. "*New York's New Constituti onal Environmental Bill of Rights: Impact and Implications*"; Science and Environmental Health Network, The International Human Rights Clinic at Harvard Law School, "*An Environmental Right for Future Generations : Model State Constitutional provisions & Model Statute*", November 2008.

[34] Article 53 of the Vienna Convention on the Law of Treaties; Done at Vienna on 23 May 1969, Entered into force on 27 January 1980, United Nations, Treaty Series, vol. 1155, p. 331

[35] East Timor (Portugal v. Australia), Judgment, I.C.J. Reports 1995, p. 102, para. 29

[36] Barcelona Traction, Light and Power Company, Limited (Belgium v. Spain), Second Phase, Judgment, I.C.J. Reports 1970, p. 32, para. 33

[37] Robinson, N.A., "Environmental Law: is an obligation erga omnes emerging", 2018, Panel Discussion at the United Nations, 4.; Meguro, M. "Litigating climate change through international law: Obligations strategy and rights strategy", 2020, Leiden Journal of International Law, 33(4), 933-951.;

[38] Legality of the Threat or Use of Nuclear Weapons (Advisory Opinion) [1996], ICJ Rep 19

[39] Section 1 (2) of the Environmental Protection Act 1990

Although "environment" is commonly understood as our surroundings and nature, some institutions have personified the notion. Notably, the Rights of Nature doctrine[40] posits that the environment itself, along with its constituencies, is a right holder. Previously referred to as "biocoenosis"[41], Tansley first coined the term "ecosystem"[42] which is reflected in the circular economy.[43] For example, the Constitution of Ecuador 2008 explicitly envisages rights of nature owed to nature itself, distinctly from those serving to compensate the physical person(s) affected by environmental harm due to their "dependency on the affected natural systems"[44] :

> "Nature, or Pacha Mama, where life is reproduced and occurs, has the right to integral respect for its existence and for the maintenance and regeneration of its life cycles, structure, functions and evolutionary processes. (…) to protect nature and to promote respect for all the elements comprising an ecosystem."[45]

Similarly, India's Madras High Court granted legal personhood status to nature:

> "with all corresponding rights, duties and liabilities of a living person, in order to preserve and conserve them. The Court also accorded the rights akin to fundamental rights/ legal rights for their survival, safety, sustenance and resurgence. Then the Court has appointed eminent persons to voice them, maintain its status and also to promote their health and wellbeing.[46]

In fine, there is no general consensus on the definition or the scope of coverage of the term "environment" in the legal literature.[47] The adjective "environmental" may mean 'relating

---

[40] Stone, C. D. 1972. Should trees have standing? Towards legal rights for natural objects. Southern California Law Review 45:450-501.

[41] Glaubrecht, Matthias. "Homage to Karl August Möbius (1825–1908) and his contributions to biology: zoologist, ecologist, and director at the Museum für Naturkunde in Berlin." *Zoosystematics and Evolution* 84, no. 1 (2008): 9-30.

[42] Tansley, Arthur G. "The use and abuse of vegetational concepts and terms." *Ecology* 16, no. 3 (1935): 284-307. ; Willis, Arthur J. "The ecosystem: an evolving concept viewed historically." *Functional ecology* (1997): 268-271.

[43] Korhonen, J., Honkasalo, A. and Seppälä, J., 2018. Circular economy: the concept and its limitations. *Ecological economics*, *143*, pp.37-46.; Ryen, Erinn G., and Callie W. Babbitt. "The role of US policy in advancing circular economy solutions for wasted food." *Journal of Cleaner Production* 369 (2022): 133200.

[44] Article 72 of the Constitution of Ecuador 2008

[45] Article 71 of the Constitution of Ecuador 2008

[46] Decision of the Madras High Court of 19.04.2022, W.P.(MD)Nos.18636 of 2013 and 3070 of 2020 and W.M.P.(MD)No.2614 of 2020

[47] Prieur, M., 1980. Michel Despax, "*Droit de l'environnement*", 1980. Revue juridique de l'Environnement, 5(3), pp.268-269.; Prieur, M., et al., 2016. "*Droit de l'environnement*". 7th edition. Dalloz.; Van Lang, A., "*Droit de l'environnement*", 2002, PUF, 4th edn ("*all the elements, natural and cultural, whose existence and interactions constitute the framework of human life*"); International Court of Justice, "*Legality of the Threat or Use of Nuclear Weapons, Advisory Opinion*", I.C.J. Reports 1996, p.226, ISBN 92-1-070743-5 ("*the environment is not an abstraction, but the space in which human beings live and on which the quality of their lives and health, including for future generations, depend. The general obligation of States to ensure that activities within their jurisdiction or control respect the environment of other States or of areas beyond national jurisdiction has become part of the body of international environmental law*."); Debard, T. et al., "*Lexique des termes juridiques 2020-2021*", 28th ed., Dalloz ("*the natural, urban, industrial (sometimes also economic, social and political) environment in which people live*"); Article 110-1 of the French Code of Environment ("*Spaces, resources and natural environments on land and at sea, the sounds and smells that characterise them, sites, daytime and night-time landscapes, air quality,*

to the environment' (accessorily), 'about the environment' (principal), or even be largely interpreted to refer to the environment itself (as an object or a subject).

Environmental accountability may be understood as an evolving general principle that encompasses the responsibility and obligation of individuals, as well as public and private entities and institutions,[48] to address environmental impacts of their practices. It implies not only duties to undertake or refrain from certain actions but also includes enforcement mechanisms and the application of proportionate sanctions.[49] The core attributes underpinning this framework are transparency, responsibility, and environmental stewardship.

B. PROBLEMATICS

The lack of uniform or universal principle on environmental accountability risks creating application challenges. The purpose of the present subsection is to outline diverse practical challenges tending to advocate the need for the establishment of a common guiding principle.

(i) On Enforcement and Sanctions Compliance

Environmental accountability would lack significant practical impact without enforceable measures and sanctions. Compliance sanctions are crucial in deterring acts that are susceptible to harm consumer welfare. [50] The legal literature on sanctions and enforcement is abundant yet complex.[51] For the purpose of the present paper, the notion of "sanctions" shall

---

water quality, living beings and biodiversity are part of the common heritage of the nation."); Sub-section VI, Article 25, Title VII of the Single European Act 1986

[48] Morgera, E., "*Corporate Environmental Accountability in International Law*", 2020, OUP; Lee, M., "*Brexit and the Environment Bill: The Future of Environmental Accountability*", 2022, Global Policy, 13, pp.119-127.; Gualtieri, A.N.G., 2002. "*The environmental accountability of the World Bank to non-state actors: Insights from the Inspection Panel*". British Yearbook of International Law, 72, pp.213-254.; French *Conseil constitutionnel*, Decision n°88-248 DC, 17.01.1989; Orozco, E.C.T., "*Environmental Accountability for the Public Sector, a Comparative Analysis in Three Countries: Australia, Mexico and USA*". Diss. Erasmus Universiteit, 2006.

[49] Article 191 and 192 of the TFEU; Title 40 of the Code of Federal Regulations (CFR) and environmental statut es in the US; Article 1(19) of New York State's Constitution's Bill of Rights; Article 1, Section 8, Clause 3 (Co mmerce Clause) of the US Constitution; United States Clean Water Act of 1977; US Resource Conservation and Recovery Act of 1976; United States Clean Air Amendments of 1970; United States Department of Justice, Justi ce News of 28.05.2013, "*Wal-Mart Pleads Guilty to Federal Environmental Crimes, Admits Civil Violations and Will Pay More Than $81 Million*", https://www.justice.gov/opa/pr/wal-mart-pleads-guilty-federal-environmental-crimes-admits-civil-violations-and-will-pay-more; Anderson, J.L. et al. "*Environmental Penalties: Discretion an d Disparity*", 2023, Stanford Environmental Law Journal, 42(1).; Bellew, S.J. et al. "*Criminal Enforcement of E nvironmental Laws: A Corporate Guide to Avoiding Liability*", 1997, Vill. Envtl. LJ, 8;

[50] Tyran, J.-R., & Feld, L. P. "*Achieving Compliance When Legal Sanctions Are Non-Deterrent*". The Scandinavian Journal of Economics, 2006,108(1), 135–156. http://www.jstor.org/stable/3877047

[51] *Commission of the European Communities v French Republic* C-304/02; *Commission of the European Communities v Italian Republic* C-304/05; Directive 2008/99/EC; 2021/0422 (COD); COM(2021) 814 final; Directive 2004/35; Regulation 1907/2006; Milieu Consulting SRL and Gopa Luxembourg, JUST/2020/JACC/FW/CRIM/0122 "*Final Report, Study to supply the Impact Assessment of the Directive 2008/99/EC on the protection of the environment through criminal law*", 20.12.2021; Hofer, A. "*The*

be construed largely to encompass all penalties [52] that are "effective, dissuasive and proportionate" [53], both criminal [54] and administrative [55]. These complementary sanctions mechanisms deter acts that are susceptible to harm consumer welfare. [56]

There remain shortcomings to the effectiveness of global compliance and enforcement

Proportionality of Unilateral "Targeted" Sanctions: Whose Interests Should Count?", 2020, Nordic Journal of International Law, 89(3-4), 399-421; Sentencing Council, "*Environmental Offences Definitive Guideline*", 01.07.2014, https://www.sentencingcouncil.org.uk/wp-content/uploads/Environmental-offences-definitive-guideline-Web.pdf; Directive (EU) 2018/2002 amending Directive 2012/27/EU; Regulation (EU) 2021/1119

[52] Schwartz, R.D., et al. "*On Legal Sanctions*", 1967, The University of Chicago Law Review, 34(2), 274–300; French *Conseil d'Etat* and *Cour de cassation*, "*La sanction: regards croisés du Conseil d'État et de la Cour de cassation*", 13.12.2013 ("*the scope of intervention of sanctions have widened, their authors have multiplied, their forms have diversified*"); Report of the French *Conseil d'Etat* 1995 ("*sanctions are essentially repressive in nature. They stem from an intention to punish a breach of obligations*."), https://www.conseil-etat.fr/decisions-de-justice/jurisprudence/dossiers-thematiques/le-juge-administratif-et-les-sanctions-administratives; French *Conseil d'Etat*, 22.06.2001, decision n°193392

[53] Faure, M.G., "*Effective, Proportional and Dissuasive Penalties in the Implementation of the Environmental Crime and Shipsource Pollution Directives: Questions and Challenges*", 20.12.2010, European Energy and Environmental Law Review, pp. 256-278 ("*effectiveness refers to a relationship between particular goals set by the policy maker on the one hand (the effects) and the (legal and policy) instruments used by the policy maker on the other hand. (...) dissuasiveness refers strongly to deterrence theory. Dissuasion is based on the idea that the foresight of a criminal penalty will lead potential perpetrators (in general), but also a specific violator (individually) to compliance with the law. (...) The proportionality of a penalty most likely refers to a relationship between the type and magnitude of the penalty on the one hand and the type of infringement on the other hand*."); *Total Waste Recycling* C-487/14 ; *Pinckernelle* C-535/15

[54] Criminal fines include criminal fines, imprisonment, probation, community service, restitution, asset forfeiture, license revocation, environmental remediation, confiscation of profits, suspension of business activities, and disqualification from public tenders or grants. ; See French *Cour de cassation*, Crim. 28.06.2017, n° 16-82.973 ; French *Cour de cassation*, Crim. 16.01.2007, n°03-86.502. ; French *Cour de cassation*, Crim. 7 oct. 2014, n°14-81.897; French *Cour de cassation*, Crim. 24.03.2015, n°14-81.897 ; French *Cour de cassation*, Crim. 24.01.2012, n°11-84.521. ; Monteiro, É. "*Infractions relevant du droit de l'environnement*", 2018, Revue de science criminelle et de droit pénal comparé, 2, 437-448; Article L173-1 of the French Code of Environment

[55] Administrative sanctions comprise of administrative fines, permit revocation, abatement, injunctive relief or suspension, administrative closure of facilities, compliance orders (rectification measures), administrative penalties directly imposed by the regulatory agencies, licence restrictions, public notice and reporting, and corrective action plans Article L171-8 of the French Code of Environment; French *Conseil d'Etat* 14.11.2008, *Sté Soferti, req.* n° 287275, RFDA 2009, p. 176. ; Van Lang, A. "*Droit répressif de l'environnement : perspectives en droit administratif*", 2014, Revue juridique de l'environnement, 39, 33-46. https://www.cairn.info/revue--2014-HS01-page-33.htm.

[56] As per French case law, it is not against the principles of *non bis in idem*, necessity, and proportionality that there be concurring sanctions for the same facts, so long as the applicable law does not expressly prohibitive or exclusionary and, in any case, if the sum of the amount of the administrative and criminal sanctions do not exceed the maximum amount of sanction prescribed for either one of the sanction. In this case, there is a balancing act made in between the two types of sanctions.; See Article 50, Title IV of the European Union Agency for Fundamental Rights (*Charte des droits fondamentaux de l'Union européenne)* ("*the right not to be tried or punished twice in criminal proceedings for the same offence"*); Article 8 of the French Declaration of the Rights of Man and of the Citizen (which extends to sanctions of any type having the characteristics of a punishment); French *Conseil constitutionnel*, Decision n° 2021-953 QPC of 03.12.2021 (The accumulation of sanctions is possible so far as the applicable law does not envisage the contrary. Here, Article L171-8 and L173-1 of the French Code of Environment; French *Conseil d'Etat*, 20.03.1991, *SARL Rodanet, req*. Decision n° 83776 ; French *Conseil Constitutionnel*, Decision. n° 89-260 DC, 28.07.1989; French *Conseil constitutionnel*, Decision n° 96-378 DC, 23.07.1996 (The accumulation of sanctions is not permitted if the applicable law expressly envisages that only either one of them shall apply. For example, Article L36-11(2)(b) of the French Post and Telecommunications Code provides that a pecuniary administrative fine may be applicable if the offence does not quality as a criminal offence).

As per the United Nations Environment Programme Report of 2019:

> "Too often, implementation and enforcement of environmental laws and regulations falls far short of what is required to address environmental challenges. Laws sometimes lack clear standards or necessary mandates. Others are not tailored to national and local contexts and so fail to address the conditions on the ground. Implementing ministries are often underfunded and politically weak in comparison to ministries responsible for economic or natural resource development."[57]

Indeed, several obstacles hinder effective enforcement, the imposition of sanctions, and compliance, including but not limited to the following:

(i) Adaptation failures[58] hamper the adoption of precautionary measures and the effectiveness of environmental actions. [59] Draconian administrative obligations and constant changes to the legal requirements or standards may result in rendering compliance impractical or much difficult to achieve. They are likely to affect smaller operators facing difficulties to construct a compliant project *ab initio* with no financial margin to face the legal uncertainties and adapt constantly, as much as their bigger counterparts that are obliged to modify their long-standing practices and ways of operating significantly within a restricted timeframe.

(ii) The instrumentalisation of contractual devices may serve to deflect liability onto a scapegoat – often to the detriment of the party with less bargaining power, thereby exacerbating asymmetry in the contractual relationship. There is no general prohibition against contractual provisions that, individually or collectively, may have a materially adverse effect on the weaker party to the contract. These may include penalty clauses, indemnity clauses, exclusions or limitations of liability, termination clauses, or settlement agreements involving the waiver of legal rights before a competent authority.

---

[57] United Nations Environment Programme, "*Environmental Rule of Law: First Global Report*", 24.01.2019, Nairobi; European Commission, Directorate-General for Environment, "*Environmental pollution: new study find s that polluters do not pay for the damage they cause"*, News article, 12.11.2021, https://environment.ec.europa.eu/news/environmental-pollution-new-study-finds-polluters-do-not-pay-damage-they-cause-2021-11-12_en; European Parliament, Dr. Faure M.G., "*Environmental liability of companies*.", 2020 , Policy Department for Citizens' Rights and Constitutional Affairs Directorate-General for Internal Policies, PE 651.698- May 2020

[58] UN Environment Programme, "*Adaptation Gap Report 2022: Too Little, Too Slow–Climate adaptation failure puts world at risk*." Nairobi: UNEP, 01.11.2022, https://www.unep.org/adaptation-gap-report-2022

[59] European Parliament Research Service, Bourgignon, D., *"The precautionary principle: Definitions, applicatio ns and governance*", December 2015, — PE 573.876, translated in February 2016, https://www.europarl.europa.eu/RegData/etudes/IDAN/2015/573876/EPRS_IDA(2015)573876_EN.pdf ; European Parliament, *Amendment s adopted by the European Parliament on 01.06.2023 on the proposal for a directive of the European Parliament and of the Council on Corporate Sustainability Due Diligence and amending Directive (EU) 2019/1937* (COM(2022)0071 – C9-0050/2022 – 2022/0051(COD)), 01.06.2023, https://www.europarl.europa.eu/doceo/document/TA-9-2023-0209_EN.html.

(iii) Where compliance procedures are unduly complex or protracted, companies may opt to bear the cost of non-compliance as a means of survival, rather than adhere to regulatory requirements. Some companies may even suspend all or part of the commercial activities related to the products under scrutiny, taking into account the financial risks of continuing operations and their legitimate interest in profit-making, which is inherent in the very definition of a company.[60] Such outcomes run counter to the fundamental purpose of pro-environmental laws and regulations.

(iv) Identifying the entity to be held accountable is not always straightforward, nor is determining the appropriate geographical and temporal scope of the corresponding liability. The death of the offender (whether a legal person or a moral person in case of corporate offense and insolvency) may constitute limitations to environmental accountability.

(v) Environmental protection must be balanced against a range of other interests and policy considerations, namely economic. However, achieving a fair balance between economic objectives and environmental protection remains a complex and enduring challenge. Recent developments in competition law have expanded the scope for incorporating sustainable development considerations into the justification and assessment of efficiency gains, thus establishing a framework that balances economic and environmental objectives.[61] Similarly, State aid rules now encompass support for measures aimed at preventing or reducing non-greenhouse gas pollution—such as noise pollution, resource efficiency, circular economy initiatives, biodiversity, and environmental remediation—while broadening the range of eligible investments and technologies to align with the objectives of the Green Deal. [62]

(vi) Determining the appropriate weight to be accorded to scientific, technological, and technical evidence, as well as a company's sustainability performance metrics and management control systems, may present certain challenges. [63]

---

[60] Article L521-7 of the French Consumer Code ("*If it is established that products do not comply with the regulations in force or present or are likely to present a danger to public health or consumer safety, the administrative authority may order by decree one or more of the following measures: suspension of the placing on the market, withdrawal, recall and destruction. (...) However, where the operator provides evidence that part of the products comply with the regulations in force or do not present a danger to public health or consumer safety, he may place these products back on the market*."); Articles 3(4), 31, 32 and 38 of Directive 2001/95/EC (General product safety, the health and safety measures of withdrawal, recall and restriction on the market are exceptional measures. They are applicable if the product proves to be dangerous in such a way as to present a serious risk, or if the product is sufficiently dangerous as to cause serious safety problems to all or a significant part of the EU, which call for rapid intervention, with a degree of urgency, notwithstanding the compliance of a product with the criteria intended to guarantee the general safety requirement.)

[61] « Observations de l'AFEC sur la contribution du droit de la concurrence à la promotion du développement durable (2025) » , Association française d'étude de la concurrence (AFEC) Jeunes

[62] Communication from the Commission - Guidelines on State aid for climate, environmental protection and energy 2022 (2022/C 80/01, Official Journal of the European Union, C 80, Volume 65, 18 February 2022

[63] Kazancoglu, I., Sagnak, M., Kumar Mangla, S., & Kazancoglu, Y. (2021). "Circular economy and the policy: A framework for improving the corporate environmental management in supply chains. Business Strategy and the Environment", 30(1), 590-608.

Beyond these initial challenges, additional complexities emerge in determining the suitable remedies.

(i) On the Remedies

Indeed, the unbridled accumulation of industrialisation, globalisation, overpopulation, hyper-consumerism and enforcement issues contribute to the difficulties in averting the irreversibility of environmental damage. Whilst the effectiveness of legal compliance and sanctions influence the environmental impact, negative externalities would not necessarily cease to exist. The limits to pecuniary sanctions remain the accumulation of negative externalities that cannot be undone retroactively, eradicated or reduced. Therefore, an alignment ought to be made between the sanctions and enforcement by ensuring that the penalties cover the recovery and/or remedial phases as much as possible. Remedies like environmental restoration and redress of the affected population may be beneficial, albeit with limitative effects.

The financial impact of the legal consequences to multinational group companies would be different than that to SMEs and auto-entrepreneurs. This is especially so in cases where rectification or remedy is still possible to enable the pursuit of the activity after clearing the 'negative points'. The target entity will most likely incur significant costs during the lengthy process of regularisation. The costs may include legal fees, designation of existing staff or new hires to deal with the compliance procedure, and expertise fees. For group structures and companies that have greater financial margin, these types of costs may translate into the reduction of staff, quality of the products and services, or other elements having an adverse impact to the consumers' choice and welfare in the long run. In case of SMEs, start-ups or foreign structures, requiring funds to not only develop and innovate but also to learn and adapt their business practices with respect to the pertinent market, are likely to have more drastic impact to their survival and the preservation of competitivity. Indeed, environmental-harming consequences are "externalised", often to developing countries, creating social issues.[64] For example, the United Nations has alerted that millions of "e-waste is diverted to the black market and disguised as used goods to avoid the costs associated with legitimate recycling, then dumped illegally in developing countries."[65] Thus, the unequal financial burden of legal compliance highlights not only the fragility of smaller or emerging enterprises but also raises broader concerns about access to justice, fair competition, and the ethical displacement of environmental harm to vulnerable regions.

Section II suggests the conceptualisation of an overarching principle to mend the justice gap.

---

[64] Ferronato N, Torretta V. "*Waste Mismanagement in Developing Countries: A Review of Global Issues*", 24.03.2016, Int J Environ Res Public Health.,16(6):1060.; Galeotti, M., et al., "*Measuring environmental policy stringency: Approaches, validity, and impact on environmental innovation and energy efficiency*", Energy Policy, 2020, Volume 136, p.111052.

[65] United Nations University, The Guardian, Vidal J., "Toxic E-Waste Dumped in Poor Nations, Says United Nations", 16.12.2023 https://ourworld.unu.edu/en/toxic-e-waste-dumped-in-poor-nations-says-united-nations

II. INTERNATIONAL ENVIRONMENTAL JUSTICE: THE MODERNISATION OF THE ENVIRONMENTAL ACCOUNTABILITY PRINCIPLE

A fragmented system introduces risks of dissonance among various measures, policies, and instruments, potentially undermining alignment with the initial objectives and compromising overall coherence and integrity. While the absence of a categorical definition of "environmental accountability" may raise concerns regarding conceptual clarity and legal security, it simultaneously offers a degree of flexibility, allowing the term to be adaptively interpreted in accordance with the specificities of each case. This would be more so without a common direction, a consistent definition, and an aligned understanding of the key principles grounding the environmental objectives. Thus, it remains ever so pertinent to ensure that the State, entities, and citizens impacting, benefiting from, exploiting, and contributing to the environment, in any way, make conscious and informed decisions.

In parallel, a way to ensure fair distribution of social burdens, accessibility, and non-discriminatory participation ought to be considered. In this respect, it is important to recognise and consider the existence of local particularisms, contexts and capacities. This is mainly because the forms, order, and ways in which each actor and State conceive, interpret, prioritise, and execute their projects are susceptible to vary indefinitely.[66] Further, not all jurisdictions, considering both common law and civil legal systems, envisage the same legal avenues, sanctions and remedies to solving environment-related problematics.[67] Since issues of different nature, type, form, and scope exist, it is reasonable and coherent to leave space for unique and creative solutions. Thus, even though legal transplant and influence will be evoked throughout the present paper, the point shall neither be to eradicate the originality of any jurisdiction, nor to weigh the divergent legal systems and cultures with views of assessing which is the best.
It was deemed that the notion of environmental accountability was most exploitable for the benefit of achieving the global environmental goals, without creating significant conflicts with other more developed principles of law or threatening uniformity of EU law.

This section seeks to construe a more holistic and flexible definition of environmental accountability in order to ensure the widest coverage for enforcement. This method of conceptualisation will help the divergent legal policies and understandings of environmental protection across the world converge and materialise into a pro-environmental and exportable principle of law that is not inconsistent with existing environmental policies. It is also suggested that certain overriding rights, objectives, benefits, and principles related to environmental harm, such as freedom of movement, freedom to contract, rule of law and human rights, be considered.

In light of the above, "environmental accountability" shall be understood as an umbrella concept referring to the liability, duty, answerability and responsibility of a moral or natural

[66] Paton, B., 2000. "*Voluntary environmental initiatives and sustainable industry*". Business strategy and the environment, 9(5), pp.328-338.; Khanna, M., et al. (2009) "*The effectiveness of voluntary environmental initiatives*" In M. Delmas & O. Young (Eds.), "*Governance for the Environment: New Perspectives*" Cambridge University Press.; Le, T.T., 2022. "*How do corporate social responsibility and green innovation transform corporate green strategy into sustainable firm performance?*". Journal of Cleaner Production, 362.; Bárcena-Ruiz, J.C. et al.. 2022. "*International trade and environmental corporate social responsibility*". Energy Economics, 115

[67] OECD, Kozluk T., et al. "*How stringent are environmental policies?*", February 2016, Policy Perspectives, https://www.oecd.org/economy/greeneco/How-stringent-are-environmental-policies.pdf

person, whether public or private, and regardless of their legal status, structure or form,[68] by virtue of their undertakings, whether commercial, personal, professional or charitable, of any type and under any form, whether via direct or indirect actions, decisions, promises, engagements, negligence, representations or omissions, that has a consequence or effect, whether direct or indirect, foreseeable or actual, to the environment or any rights attached to it (such as the right to a healthy life and environment).

A. Legal Realism: a Pathway Towards Self-regulation

Post-modern challenges are intensified when regulating domains heavily reliant on specialised knowledge and emerging technologies, as such regulation depends significantly on expert understanding and must contend with the inherent difficulty of governing areas that are profoundly future-oriented.[69] Despite the evolution of international environmental law since History of time, its incipient integration and adaptation to contemporary realities has only recently become observable. [70] Nevertheless, the current legal "balancing act" continues to insufficiently reflect practical realities and their consequential impacts.

> "The late nineteenth-century mainstream saw law as 'a system,' having a strong internal structural coherence based on the three traits of exhaustive elaboration of the distinction between private and public law, 'individualism,' and commitment to legal interpretive formalism."[71]

In this respect, it is pertinent to reflect on the perspective of legal realism, a legal theory predicated on the notion that all law derives from prevailing social interests and public policy, rather than being solely the product of formalistic legal reasoning.

> "The life of the law has not been logic: it has been experience. The felt necessities of the time, the prevalent moral and political theories, intuitions of public policy, avowed or unconscious, and even the prejudices (…) in determining the rules by which men should be governed."[72]

> "There is more to legal decision-making than the orderly application of positive law

[68] Including public authorities, body or government agencies, body corporate, partnerships, group structures, consortiums, associations or auto entrepreneurs
[69] Sanford E. Gaines, "Reflexive Law as a Legal Paradigm for Sustainable Development", 10 Buff. Envtl. L.J. 1 (2002-2003), https://digitalcommons.law.buffalo.edu/belj/vol10/iss1/1
[70] Francioni, Francesco, 'Realism, Utopia, and the Future of International Environmental Law', in The Late Antonio Cassese (ed.), Realizing Utopia: The Future of International Law (Oxford, 2012; online edn, Oxford Academic, 20 Sept. 2012), https://doi.org/10.1093/acprof:oso/9780199691661.003.0034
[71] Kennedy, D., "From the Will Theory to the Principle of Private Autonomy: Lon Fuller's 'Consideration and Form.'" Columbia Law Review 100, no. 1 (2000): 94–175 ; Kennedy, D., "Two Globalization of Law & (and) Legal Thought: 1850-1968." Suffolk UL Rev. 36 (2002): 631.
[72] Holmes Jr, Oliver Wendell. *The common law*. Routledge, 2020, Lecture I.

generalizations"[73]

Bearing this in mind, policymakers ought not to overlook the role and initiatives of economic operators who strive to innovate despite the risks of failure.[74] Consumer engagement in pro-environmental activities likewise constitutes a significant factor warranting consideration. Together, they accelerate and foster the achievement of common environmental objectives despite differing interests, focuses, perspectives, and approaches.

> "For many years, the business management literature proposed that managers could help their firms discover win/win opportunities that protect the environment while simultaneously increasing profits (Porter and van der Linde 1995b ; Hart 1995)." [75]

Rather than attempting to forcibly merge two disparate worlds, self-regulation emerges as a pragmatic laissez-faire mechanism to create a more participatory model. A pertinent consideration is the diversity of business models worldwide, where competition and market dynamics foster innovation through such diversity. Consequently, rather than relying solely on rigid legal frameworks, the concept of legal transplant may be employed to accommodate this diversity in legal modelling and guide national implementation towards comprehensive environmental objectives.

B. Legal Transplant: Towards Diversity and Inclusiveness

In the comparative law literature, there are divergent doctrines on the concepts of legal transplant, legal formants, borrowing and influence.[76] The aim of this section is not to implant foreign rules, laws or principles, but to harmonise existing principles in the context of environmental accountability so as to not obstruct innovative advancements and collective engagements to combat climate change. They encompass the consideration of the principles of (i) environmental international public order, (ii) duty of care and assumption of responsibility, and (iii) proportionality. It neither seeks to unify or harmonise the manner in which these instruments are enforced, nor propounds to establish any existing laws or regulations as a model rule. *A contrario,* it aims to provide a foundational instrument and test that is exportable and malleable to different contexts as deemed fit. Its objective is to promote greater flexibility, accessibility, and effectiveness of legal instruments across jurisdictions.

---

[73] Jones, Harry W. "Law and Morality in the Perspective of Legal Realism." *Columbia Law Review* 61, no. 5 (1961): 799–809. https://doi.org/10.2307/1120094.

[74] J. Davis-Peccoud Bain & Company "98% of Corporate Sustainability Programs Fail. 4 Proven Ways to Boost the Success Rate", 15.03.2017, https://www.bain.com/about/media-center/bain-in-the-news/2017/corporate-sustainability-programs-fail-ways-to-boost-the-success-rate/
; In 1994, John Elkington coined the term "Triple Bottom Line" (TBL), establishing a sustainability framework that assesses corporate performance through three interconnected dimensions: social equity, environmental responsibility, and economic viability.

[75] A. King and M. Toffel, "Self-regulatory institutions for solving environmental problems: perspectives and contributions from the management literature", March 2, 2004

[76] Ewald, W., "*Comparative Jurisprudence (II): The Logic of Legal Transplants*", The American Journal of Comparative Law, Volume 43, Issue 4, Autumn 1995; Sacco, R. "*Legal Formants: A Dynamic Approach to Comparative Law (Installment I of II)*", 1991, The American Journal of Comparative Law 39, no. 1 (1991): 1–34.

(i) On Private International Law & Environmental International Public Order

Over one hundred countries have recognised a constitutional right to a healthy life and environment.[77] However, no single right relating to the environment is recognised unanimously as having a public order value by all the jurisdictions across the world. Moreover, certain environmentally harmful practices remain unprohibited in some jurisdictions, thereby enabling actors to engage in *forum shopping*. The latter refers to a practice of private international law which consists in bringing an action before the court most favourable to the plaintiff's interests.

This subsection aims to assess whether the principle of international public order may serve to establish balance between countries and enhance environmental justice internationally.

French case law and doctrine propose the concept of "international public order" (*ordre public international*), which although not ossified or strictly defined by law, may be understood as "*the principles of universal justice considered in the [national] opinion as having absolute international value*"[78] or the "*essential principles of [national] law*"[79].

In brief, the principle produces double effects. First, it produces a "*negative effect*" that consists in disregarding the foreign law designated by the conflicts rule of private international law when the application of that law would undermine the fundamental values of the *forum* (i.e. the national court). Second, it produces a "*positive effect*" that consists in applying local law in substitution of the foreign law deemed non-applicable for its conflict with international public order. However, the scope of substitution is limited, as national law may only supplant foreign law provisions that are contrary to international public order. In other words, the foreign law designated by the conflicts rule which does not infringe the fundamental values of the *forum* will continue to apply with regards to the other aspects of the dispute submitted to the court. Additional notions of "corresponding values," "equivalent imperativeness," and "equivalent proportionality" are advanced, contingent upon whether the fundamental rights in question are absolute or non-absolute, at national and/or European levels.[80]

Thus, international public policy makes it possible, by way of an exception, to oppose the effects of a foreign norm if they are contrary to the national conception of the international public order[81]. In this respect, the examination as to whether a foreign law ought to be deemed

---

[77] United Nations Environment Programme, "*What are your environmental rights*?", https://www.unep.org/explore-topics/environmental-rights-and-governance/what-we-do/advancing-environmental-rights/what-0; United Nations Environment Programme, "*Environmental Rule of Law: First Global Report*", 24.01.2019, Nairobi, ISBN: 978-92-807-3742-4, p.158; French Constitutional Law n°2005-205, French Environment Chart 2004, French Decisions n°2008-564 DC and n°2014-394 QPC; Article 45 of the Spanish Constitution of 27.12.1978

[78] *LAUTOUR* decision, Civ. 25.05.1948

[79] French *Cour de Cassation*, Civ. 08.07.2010, n°08-21.740

[80] T. Luye, « La raréfaction de l'ordre public international ». Diss. Université Paris Cité, 2021.

[81] Article 6 of the French Civil Code; Article L224-25-32 of the French Consumer Code; Lequet, P., « *L'ordre public environnemental et le contrat de droit privé* », 26.05.2022, Doctoral dissertation, Université Paris-Saclay (ComUE), LGDJ Ed, EAN 9782275108384 ; Laville, B. « *L'ordre public écologique: Des troubles de voisinage à l'aventure de l'anthropocène* », 2015, Archives de philosophie du droit, 58, 317-336; French *Cour de cassation*, civ., Ch. Civ. 1, 26.05.2021, n°19-15.102 ("*except in the case of special rules, the court is not obliged to change the legal basis of claims, but it is obliged, where justified by the facts before it, to apply the rules of public order arising from European Union law, such as a conflict of laws rule where derogation is prohibited, even if the parties have not invoked them*.")

contrary to international public policy is carried out *in concreto*, i.e. it goes beyond merely determining whether the abstract content of the foreign law is contrary to international public policy. The question asked is whether the concrete application of the foreign law to the case leads to a situation that is intolerable to the eyes of the legal order of the *forum*, such as slavery.

There are many potential benefits of exporting this principle. It could serve to catch serious environmental crime with an element of extraneity, which produces unwanted effects in the national territory. It could also be interesting for individual States, especially countries in which the environmentally harmful practices or effects are "dumped", to be able to refer to and use this principle of law as a defence to their citizens' healthy life and environment. Even without the existence of written legal texts envisaging a list of public order laws, especially in common law systems, "*principles of universal justice considered in the national opinion as having absolute international value*" may be invoked as a protectionist measure. It must be noted that this would infer the admission of a principle's absolute value in the context of the current society, beyond the phrasing and the interpretative differences that may exist depending on the applicable law and jurisdiction. The principle could serve as a passage to impliedly harmonise the consensus that could not be formulated on a text of law requiring complex procedures and a certain quorum during votes, amongst other obstacles. Further, each jurisdiction may maintain their own legal culture and system, whilst also having the margin to evaluate whether an unknown, obscure foreign law normally applicable by virtue of the conflicts rules may harm essential principles of national law or absolute principles of universal justice. Finally, the principle would help reduce the possibility of actors from easily shifting their liabilities to jurisdictions where there would be less or none.

Nevertheless, this notion being relevant in case of existence of "internationality", other nationality-neutral principles are considered to help fill the liability gap.

(ii) On Environmental Duty of Care & Assumption of Responsibility

The concept of accountability for environmental damage is relatively recent in the development of international legal thought.

First, contextualising current methods of sanctioning violations of environmental law at the international level is both relevant and necessary. The International Court of Justice rendered its first environmental compensation decision on 2 February 2018. In the case *Costa Rica v. Nicaragua*[82], the Court stated that "damage to the environment, and the consequent impairment or loss of the ability of the environment to provide goods and services, is compensable under international law," and further requested to order Nicaragua to "provide satisfaction so [as] to achieve full reparation of the injuries caused to Costa Rica in a manner to be determined by the Court"[83]. Two types of damages were identified by the Court: "the

[82] *Certain Activities Carried Out by Nicaragua in the Border Area (Costa Rica v. Nicaragua)*, 2 February 2018, International Court of Justice.
[83] CPJI, arrêt, 1928, Usine de Chorzów, Série A, n° 17, p. 21

impairment or loss of environmental goods and services in the period prior to recovery" and "payment for the restoration of the damaged environment." This highlights that natural environmental regeneration alone is insufficient to restore conditions to their original state, underscoring the necessity of implementing "active restoration" measures.

Then, it is worth noting that the very notion of "*duty*"[84] entails a moral or legal obligation, or responsibility. It may be positive or negative, general or specific. It is strongly correlated with the notions of rights and obligations. Environment-related duties may arise by virtue of legal dispositions, [85] voluntary environmental commitments [86], contractual obligations[87], professional obligations and engagement to comply with international standards. It may also arise due to mandatory factors such as national or international public order, legal and regulatory compliance obligations, amongst others. For the purpose of the present paper, a particular attention will be brought to the notion of "*duty of care*"[88] in commercial law and tort law in relation to the environment.

The present subsection suggests a test relating to environmental matters that would require the establishment of a specific duty of care. The test does not seek to create an overarching general duty of care towards the environment. The first part of the test requires the identification of an existing legal text or principle, rule of law or public order envisaging environment-related rights, obligations and/or sanctions creating a specific duty of care which has been breached causing damage or prejudice to one or more people, whether direct or indirect, but that is not too remote. The second part of the test consists in the assessment of the appropriate sanctions based on a reasonable standard of care considering all surrounding circumstances, including the nature of the activities and after weighing the benefits and the harm, mindful of any relevant fundamental rights, freedoms and interests.

By default, if it is not possible to establish any responsibility based on an existing legal ground and thus on the basis of a specific duty of care,[89] the assumption of responsibility could apply as a distinct legal ground on which liability could be imposed. This would involve cases where an actor has actively and voluntarily made an environment-related promise or assurance,

---

[84] Raz, J., 1984. *Hart on moral rights and legal duties*. Oxford J. Legal Stud., 4, p.123.; Green, L., "*The forces of law: Duty, coercion, and power*", 2016, Ratio Juris, 29(2), pp.164-181.; Campbell, R.V., "*Duty, Fault, and Legal Cause*", 1938, Wis. L. Rev., p.402.; Terry, H.T., "*Legal Duties and Rights*", 1903, Yale Law Journal, 12(4), pp.185-212

[85] Articles 2 to 4 of the French Environment Charter of 2004 ("*Bloc de constitutionnalité*"); Articles 48-A and 51-A, clause (g) of the Indian Constitution

[86] Corporate social responsibility

[87] For example, there may be obligations and liabilities related to the protection of the environment in contracts for sales, lease, construction, service and insurance.

[88] Duty of care is a more specific notion in common law that is actionable against a legal or natural person - not the environment at large. See UK Environmental Protection Regulations 1991 n°2839; *Donohue v Stevenson* [1932]AC582; *Caparo Industries PLC v Dickman* [1990]UKHL2 (On the conditions of foreseeability, proximity, fairness, justice and reasonableness establish such a duty); Edirisinghe, Y.W.A., "*Duty Towards Environmental Protection: Companies' Role Under the Companies Act no.07 of 2007"*, 2017, A Quarterly Review, p.17.; Wong, C., "*Director Duty of Care in China and the United States*", 2016, Vermont Journal of Environmental Law, 18(2), pp.287-307.; Clarke, T., "*The widening scope of directors' duties: The increasing impact of corporate social and environmental responsibility"*, 2015, Seattle UL Rev., 39, p.531.; Latham, M., et al. "*The Intersection of Tort and Environment Law: Where the Twains Should Meet and Depart"*, 2011, Fordham L. Rev., 80, p.737.

[89] HLA Hart, "*Varieties of Responsibility"*, 1967, 83LQR346.

directly engaged in or assisted in a positive environment-related performance, or accepted an environment-related legal duty. Then, the fault element would have to be identified and the prejudice or harm caused would have to be determined. Finally, the connexity would have to be established. This could help mend the liability gap.[90]

As a matter of example, when products and services having or likely to have an environmental impact are commercialised in the internal market, they are subject to legitimate expectations and regulatory standards with sanctions in case of non-compliance.[91] In case of non-compliance causing environment-related harm, it is necessary to recognise the need to strike the right balance between public health, consumer safety and free commerce.[92]

However, Annex 6(1) of UNECE Regulation 117 provides for four test methods envisaging the conversion of quantitative results to qualitative ones. Annex 6(2) provides for the consideration of diameter, surface area and other specifications relating to the test object, with reference to "correlation adjustment", "improving the accuracy of measurement under minimum load", with recommendations ("may") to try to harmonise the results. Annex 6(4.7) foresees a scenario where an “average” would be taken into account. Overall, the quantitative result expressed qualitatively is inevitably exposed to a certain degree of variation, which the EU regulations acknowledge and take into account. Unless the accreditation system is instrumentalised, there may be conflicting results derived from tests conducted internally by a company and those conducted by one or more third party accredited bodies. The potential underlying causes explicative of these discrepancies are many. They include, but are not limited to, the conditions under which the test was carried out, the specificity of the products, the equipment, methods and techniques used, the standard applied, the difference between floor and ceiling thresholds of the results, the multiplicity of conversions, as well as the degree of sensitivity and accuracy of the results. In this case, additional expertise may be required in order to verify the veracity of the representations made or the facts declared by the target company, usually its own cost. Otherwise, the case may face administrative or criminal sanctions established directly by the competent authority or be escalated to the public prosecutor with views of the same, similar, or alternative sanctions, unless settled.

In order to facilitate compliance control, solutions are devised at EU level to enable cross-border cooperation on the basis of mutual confidence and recognition between Member States.[93] This includes the integration of an accreditation scheme which helps gain consumer trust and confidence due to obligations of transparency, independence, objectivity, impartiality and the absence of commercial pressures and of conflicts of interests.[94] Its value lies in the

[90] *Hedley Byrne & Co v Heller and Partner* [1963] AC 465 (HL); *Chandler v Cape plc* [2012] EWCA Civ 525, [2012]1WLR 3111. ; *Lejonvarn v Burgess* [2017] EWCA Civ 254, [2017]BLR277; *Caparo Industries plc v Dickman* [1990] 2 AC 605 (HL)

[91] Regulations 1357/2014 and 2017/997; Regulation 117 UNECE; Directive 2015/1127 amending Annex II to Directive 2008/98/EC (as amended by Directive 2018/85/EU); French Consumer Code (L.421-3, L132-2, L531-6, R531-3); French Code of Environment (L541-9-5, L541-10 et seq., R543-137 et seq., R543-229); French Decree n°2002-1563 and n° 2015-1003; French Ordinance n°2010-1579 ; French Law n° 75-633, n°2014-856 and n°2020-105

[92] Section 1, Article 1 and Annex I of the Directive 2005/29/EC

[93] European Commission, COM(2023) 419 final, 07.07.2023

[94] Accreditation may be voluntary or a regulatory requirement. Accreditation of conformity assessment bodies include testing and calibration laboratories, certification bodies, and inspection bodies responsible for ensuring

fact that accreditation "provides an authoritative statement of the technical competence of bodies"[95] devised to aid compliance enforcement.[96] An increasing number of environmental directives are being proposed and implemented at the EU level. In February 2024, EU Directive 2024/825 was adopted and came into force on March 26, 2024. The directive seeks to safeguard consumers from the premature obsolescence of goods, misleading environmental claims (commonly referred to as "greenwashing"), false information regarding the social attributes of products or business practices, and non-transparent or unsubstantiated sustainability labels.

Nevertheless, some companies decide to conduct their own internal conformity assessment prior to launching their products. This may be done in parallel with the external tests for precautionary reasons. Otherwise, this may be conducted to have more control over the results obtained, taking into account the risk that the accredited conformity assessment body may not hold the product to be compliant. Here, even though they are not officially accredited in any way, the company may be deemed to have engaged in acts that are close and equivalent to those of accredited conformity assessment bodies and for an equivalent purpose: to test the conformity of the products. In case of non-compliance of the products, there are two possible avenues: invoke the specific duty of care principle to hold an accredited conformity assessment body liable, by virtue of their specific duties set out by existing laws or invoke the assumption of responsibility principle to hold a company liable, for having engaged in acts akin to those that would be engaged by accredited conformity assessment bodies. This may be a separate legal ground to impose sanctions as those under consumer law, contract law or commercial law.

In any case, the global sanction ought to respect the principle of sanctions proportionality.

(iii)On Proportionality

The proportionality principle is incorporated in the English common law system as a statutory interpretation method in the context of judicial and constitutional review and a guiding principle in procedural rules. [97] It is recognised in the EU as a general principle [98] and

---

that the target goods and services meet the applicable EU requirements and standards. Sanctions are important to ensure that conformity assessment bodies comply with the required standards and maintain their competence and reliability. They include corrective actions, suspension or withdrawal of accreditation if an accredited laboratory fails to meet the applicable accreditation requirements or if it violates its obligations under the regulation. See Regulation (EU) 2017/625; ISO/IEC 17025, ISO/IEC 17020; European Accreditation, https://european-accreditation.org/accreditation/for-regulators/; European Commission, European Union Reference Laboratories, https://food.ec.europa.eu/horizontal-topics/european-union-reference-laboratories_en

[95] Articles 23, 28, 33 of Regulation 765/2008; *Analisi G. Caracciolo* C-142/20

[96] Recitals 13, 19 and 20 of Regulation No 765/2008; Regulation (EU) 2019/515; Decision No 768/2008/EC;

[97] Jowell, J., "*Proportionality in the United Kingdom*", 2018, Revue Générale du droit www.revuegeneraleduddroit.eu, Etudes et réflextions; UK Human Rights Act of 1998; European Convention on Human Rights; Part 44, Title 1, Rule 44.3 of the United Kingdom Civil procedure rules; Jaime, A., *"The Influence of the European Principle of Proportionality on UK Regulatory Law"*, 01.05.2011, Judicial Review of Commercial Regulation, online edn, Oxford Academic

[98] Article 5(4) of the Treaty on European Union (TEU); *CILFIT* C-283/81, [1982] ECR 3415; Proportionality is also recognised by French law in several disciplines such as environmental law (Article L.173-1 of the French Code of Environment, financial regulatory enforcement (Article L.213-1 of the French Monetary and Financial

in the US by the Eighth Amendment to the United States Constitution.[99] Generally, its principal function and purpose consist in striking a reasonable and fair balance between the act or measure in question and the associated sanctions to consider the countervailing rights and objectives, such as freedom of establishment[100], freedom of services[101], and free movement of goods,[102]

The present subsection aims to promote the enhancement of this balancing act in assessing the proportionality of sanctions relating to environment-related offences.

> "Member States are under a general obligation to take all measures necessary to ensure that EU law is applied and enforced effectively and that its ***effect utile*** is achieved. They have to ensure that infringements of EU law are penalised under conditions, both procedural and substantive, which are analogous to those applicable to violations of national law of a similar nature and importance and which, in any event, make the penalty effective, proportionate and dissuasive (…) **the national court should assess whether the amount of the sanction reflects, in particular, the risks of harm which may be caused by specific conduct in the field of the environment and human health. The amount of the sanction should not go beyond what is necessary in order to achieve the objectives of ensuring a high level of protection of the environment and human health, taking into account all the factual and legal circumstances of the case**. "[103]

Code) and criminal law (Article 8 of the French Declaration of the Rights of Man and of the Citizen); Wolfrum, R., "*Proportionality: Reconsidering the Application of an Established Principle in International Law*", 2022, International Law Studies, 99(1), p.28.; Article 24 of Directive 2019/2161/EU; Directive 2009/123/EC; C-176/03, paragraph 48 ("*the last-mentioned finding does not prevent the Community legislature, when the application of effective, proportionate and dissuasive criminal penalties by the competent national authorities is an essential measure for combating serious environmental offences, from taking measures which relate to the criminal law of the Member States which it considers necessary in order to ensure that the rules which it lays down on environmental protection are fully effective*.")

[99] Eighth Amendment to the US Constitution ("*Excessive bail shall not be required, nor excessive fines imposed, nor cruel and unusual punishments inflicted*."); Sullivan, E. et al. "*Proportionality Principles in American Law: Controlling Excessive Government Actions" 2009, OUP* ; Jackson, V.C., "*Constitutional law in an age of proportionality",* 2014, Yale Law Journal, 124, p.3094.

[100] Article 49 of the TFEU; *Gebhard* C-55/94; *Centros* C-212/97; *Überseering BV* C-208/00; *Cartesio Oktato es Szolgaltato bt* C-210/06 [2008] E.C.R. I-9641; *CILFIT* C-249/81, [1982] ECR 3415

[101] *Rewe-Zentral* C-120/78 ; *Alpine Investments* C-384/93; *Schindler* C-275/92; *Säger* C-76/90

[102] Article 26 and 28-37 of the TFEU; C-240/83 *Procureur de la République v Association de défense des brûleurs d' huiles usagées* (1985) ECR 531 ; *Commission of the European Communities v Kingdom of Denmark* C-302/86 ("[*the protection of the environment is 'one of the Community's essential objectives', which may as such justify certain limitations of the principle of the free movement of goods. (…) The Commission submits that the Danish rules are contrary to the principle of proportionality in so far as the aim of the protection of the environment may be achieved by means less restrictive of intra-Community trade. (…) measures adopted to protect the environment must not 'go beyond the inevitable restrictions which are justified by the pursuit of the objective of environmental protection'*.]")

[103] European Commission, Combating waste crime through environmental criminal law, "*Relationship between criminal and administrative enforcement and sanctioning for environmental crimes*", https://www.era-comm.eu/combatting_waste_crime/module_2/module_2_10.html

Proportionality of sanction, in the context of environmentalism, remains a fundamental principle of law that requires that the severity of penalties or sanctions imposed be proportionate to the gravity of the offense committed. One of the ways to ensure that sufficient consideration is made to the global environmental impact is to include, within the proportionality assessment[104], factors susceptible to prospectively slow down or hamper beneficial environmental contribution or action after its application. This can be done by taking into account global measures,[105] which includes prevention, rectification, mitigation and taking prospective measures.

Indeed, the aim of effective, proportionate, and dissuasive penalties ought not to be limited by the actors' economic viability and capacity to pursue environment-related projects. The latter necessarily require time of adaptation and maturity to have a truthfully positive impact to the environment. A constant challenge vis-à-vis any type of possible dangers and infringements may result in decreasing the efficiency of sanctions and limit the true potential for beneficial contributions.

Generally, it is suggested that, whilst providing sufficient discretion for penalty reduction and leniency, the purpose of the penalties be met by requiring mandatory future engagements. The costs of rectification, mitigation, and compliance system enforcement, amongst others, may be taken into account to reduce the penalties. Such reduction ought not be deemed to lessen any seriousness of the harm already caused. It simply aims to help the offender focus on preventing repeated, continuous harm, and put in place necessary measures to remedy what is possible.

---

[104] Article 5(4) of the TEU; Article L.173-1 of the French Code of Environment ; Article 24 of the Directive (EU) 2019/2161

[105] There exist voluntary or legal measures and legal defences that aim to minimise environmental harm. Prevention aims to set in place necessary precautionary and deterrent measures to ensure that foreseeable, potential or eventual harmful events do not occur in the future. Mitigation aims to reduce and/or minimise the level, degree, scope or impact of the harmful consequences or any effects that have already occurred. Mitigation in common law may be understood as a limitation on recoverable compensation or a defence. However, it is not a positive duty or a general legal principle applicable in all legal systems. The reason why mitigation as adopted by common law systems is rejected in some civil legal systems is because similar mechanisms exist in support of the underlying rationale: fair compensation. The latter is not entirely at odds with the proportionality principle which tends towards awarding the most equitable, balanced sanctions and remedies to the relevant parties. The similarity is that they both deal with abating future, eventual, potential, actual or effective harm or any effects. Although not explicitly referred to, these two principles are taken into account when considering proportionality of sanctions for environment-related offences. See Le Pautremat, S., "*Mitigation of Damage: A French Perspective*", 2006, International & Comparative Law Quarterly, 55(1), pp.205-218 ("*Mitigation as a limitation on recoverable compensation is understood by common lawyers to comprise three distinct but interrelated ideas. The first is that an injured party cannot recover damages for losses flowing from the defendant's wrong which he could have avoided through reasonable action. The second is that the claimant can recover for the loss and expense incurred in mitigating his damage. The third is that where the claimant successfully mitigates his loss, the wrongdoer is only liable for the loss as reduced, even if the mitigating action was not required of the claimant under the first rule*."); Barry, N., "*The French Law of Contract*", 1992, Clarendon Press, Oxford, 2nd edn, ISBN: 9780198762560)("*Since compensation is the aim, it is settled that whereas the moment at which the loss to be compensated is determined is the date of non-performance, the relevant moment for the calculation of damages is that of judgment, except where this will result in giving the creditor more than compensation. He may, for example, have obtained some countervailing benefit, or he may have taken steps to repair the loss at some earlier time when the cost was less, or have otherwise mitigated his damage*.")

The practice of incorporating the prevention and mitigation principles within the proportionality is not entirely new. In Europe, these principles have long been considered when assessing the proportionality of sanctions related to environmental offences or representations.[106] In 1972, the Organisation for Economic Cooperation and Development (OECD) adopted the Polluter-Pays Principle, which does not serve as a compensation mechanism for pollution damage, but rather obliges the polluter to bear the costs of pollution prevention and control as determined by public authorities[107]. This principle was incorporated into European Union law in 1986 through the Single European Act. Since then, various initiatives to implement prevention measures have been adopted across Europe and subsequently transposed into national legislation.

Similarly, the idea of moderating, adjusting, increasing, reducing, or limiting sanctions after a global balancing act is not novel. The European Court of Human Rights has gone further to consider the more global context, including the legal traditions of jurisdictions, the rule of law, as well as the importance of the object of offence.[108]

It is also proposed that a reasonableness standard be applied when assessing the weight of any preventive or mitigation measures, or measures of equivalent effect. This entails evaluating whether, considering the type, nature, frequency, and scope of the activities undertaken, as well as the foreseeable or actual harm caused—provided it is neither too remote nor unascertainable—the overall measures taken, past, present, and future, were reasonable. Such an approach seeks to avoid imposing excessively onerous burdens on the subjects concerned, which could ultimately result in diminished compliance quality due to constraints on resources and capacity.

Finally, it is proposed that the principles of free movement and proportionality be considered jointly, to ensure that the "weaker commercial actors" striving to make meaningful environmental contributions are not unfairly disadvantaged. The positive environmental contributions and beneficial effects achieved ought also be taken into account.[109]

---

[106] Directive 2005/29/EC (On any dangerousness likely to cause serious safety problems requiring rapid intervention, or an emergency situation: "*the competent authorities of the Member States shall be entitled to (...) implement the measures in a manner proportional to the seriousness of the risk, and taking due account of the precautionary principle. (...) the risk cannot be dealt with, in view of the nature of the safety issue posed by the product, in a manner compatible with the degree of urgency of the case*"); Queensland (Australia), Chapter 7, Part 1, Division 1, Article 319(1) of the Environmental Protection Act 1994 (Qld) ("*A person must not carry out any activity that causes, or is likely to cause, environmental harm* ***unless the person takes all reasonable and practicable measures to prevent or minimise the harm***")

[107] The Polluter Pays Principles, OECD Library, p6 paragraph 4

[108] European Court of Human Rights, Paragraph 82, *Engel and Others v. the Netherlands* 08.06.1976, Appl. n°5100/71 ("*it is first necessary to know whether the provision(s) defining the offence charged belong, according to the legal system of the respondent State, to criminal law, disciplinary law or both concurrently. (...) The indications so afforded have only a formal and relative value and must be examined in the light of the common denominator of the respective legislation of the various Contracting States. (...) Such supervision would generally prove to be illusory if it did not also take into consideration the degree of severity of the penalty that the person concerned risks incurring. In a society subscribing to the rule of law, there belong to the "criminal" sphere deprivations of liberty liable to be imposed as a punishment, except those which by their nature, duration or manner of execution cannot be appreciably detrimental. The seriousness of what is at stake, the traditions of the Contracting States and the importance attached by the Convention to respect for the physical liberty of the person all require that this should be so*".)

[109] Recital 1 of Regulation No 765/2008 *("It is necessary to ensure that products benefiting from the free movement of goods within the Community fulfil requirements providing a high level of protection of public*

CONCLUSION

The evolving relationship between human activity and environmental degradation underscores the urgent need for coherent, adaptable legal responses at both national and international levels. While significant progress has been made through the expansion of regulatory instruments and the promotion of sustainable practices, the persistent fragmentation of international environmental law continues to hinder uniform implementation and enforcement. Addressing these challenges requires a reconceptualisation of environmental accountability as a dynamic, inclusive, and preventive principle—capable of accommodating diverse legal traditions and socio-economic contexts.

The international legal order governs a community composed of states, international organisations, and non-state actors, with states occupying the central role as both primary subjects and makers of international law; sovereign and equal in rights and duties, regardless of their economic, social, or political differences.[110] In other words, the efficacy of international environmental law is ultimately contingent upon its domestic implementation, without which even the most robust international obligations risk remaining aspirational rather than legally operative.

This paper examines national and international legal frameworks for addressing interconnected global challenges, and proposes the development of an overarching international environmental principle grounded in practical realities and adaptable within domestic legal systems. It argues for the modernisation of existing legal principles to reflect evolving societal needs and priorities, by adopting a holistic approach aimed at bridging the liability gap through a flexible framework that prioritises prevention, self-regulation, and shared responsibility across all actors and sectors. By integrating core legal principles such as duty of care, proportionality, and international public order, and by encouraging judicial interpretation to guide legislative adaptation, a more coherent and effective system of environmental governance may emerge.

interests such as health and safety in general, health and safety at the workplace, protection of consumers, protection of the environment and security, while ensuring that the free movement of products is not restricted to any extent greater than that which is allowed under Community harmonisation legislation or any other relevant Community rules.")

[110] P. Sands and J. Peel, "*Principles of international environmental law*", Cambridge University Press, 2012.